

ENTERPRISE CONFIDENTIAL DOCUMENT

Non-Disclosure Agreement

Source request: Generate an NDA between Acme Corp and John Doe for a 12-month AI consulting engagement.

Agreement Overview

Here is the corrected and completed Non-Disclosure Agreement, incorporating all required sections, professional language, and consistent formatting.

NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement (the "Agreement"), effective as of **[Insert Effective Date, e.g., January 1, 2024]** (the "Effective Date"), is made and entered into by and between:

Acme Corp**, a corporation duly organized and existing under the laws of [State/Country of Incorporation], with its principal place of business at [Acme Corp. Address] (hereinafter, "Disclosing Party");

AND

John Doe**, an individual residing at [John Doe's Address] (hereinafter, "Receiving Party").

Disclosing Party and Receiving Party are hereinafter collectively referred to as the "Parties" and individually as a "Party."

RECITALS

WHEREAS**, the Parties desire to engage in discussions concerning a 12-month AI consulting engagement (the "Purpose"); and

WHEREAS**, in connection with the Purpose, Disclosing Party may disclose certain confidential and proprietary information to Receiving Party;

NOW, THEREFORE**, in consideration of the mutual covenants and agreements contained herein, the Parties agree as follows:

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1. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" means any and all non-public information, data, or materials, whether oral, written, electronic, visual, or in any other form, disclosed by Disclosing Party to Receiving Party, directly or indirectly, in connection with the Purpose.

Without limiting the generality of the foregoing, Confidential Information shall include, but not be limited to:

Business Information:** Business plans, strategies, financial information, marketing plans, customer lists, pricing strategies, employee information, and proprietary business processes.

Technical Information:** Proprietary algorithms, machine learning models, neural network architectures, data sets (including training, validation, and test data), source code, object code, APIs, software, hardware, designs, specifications, research, development, inventions, formulas, processes, schematics, and technical documentation.

AI Consulting Specifics:** Details of AI project methodologies, client-specific AI solutions, performance metrics of AI systems, intellectual property related to AI innovations, and any other information related to the AI consulting engagement.

Any information marked or designated as "confidential," "proprietary," or similar designation, or information that, by its nature or the circumstances of its disclosure, would reasonably be understood to be confidential.

2. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

Confidential Information shall not include any information that:

- a. Is or becomes publicly available through no fault or breach of this Agreement by Receiving Party;
- b. Was rightfully known by Receiving Party prior to its disclosure by Disclosing Party, as evidenced by written records;
- c. Is independently developed by Receiving Party without use of or reference to Disclosing Party's Confidential Information, as evidenced by written records;
- d. Is rightfully received by Receiving Party from a third party without restriction on disclosure and without breach of any confidentiality obligation owed to Disclosing Party; or
- e. Is approved for release by written authorization of Disclosing Party.

3. OBLIGATIONS OF RECEIVING PARTY

Receiving Party agrees to:

- a. ****Maintain Confidentiality:**** Hold all Confidential Information in strict confidence and take all reasonable precautions to prevent its unauthorized disclosure, dissemination, or use.
- b. ****Limited Use:**** Use the Confidential Information solely for the Purpose of the 12-month AI consulting engagement and for no other purpose whatsoever.
- c. ****No Disclosure:**** Not disclose, publish, copy, reproduce, or otherwise make available any Confidential Information to any third party without the prior written consent of Disclosing Party.
- d. ****Protection:**** Protect the Confidential Information with at least the same degree of care as Receiving Party uses to protect its own confidential information of a similar nature, but in no event less than a reasonable degree of care.
- e. ****Limited Access:**** Limit access to Confidential Information to its employees, contractors, and agents who have a legitimate "need to know" for the Purpose and who are bound by confidentiality obligations no less restrictive than those contained herein. Receiving Party shall be responsible for any breach of this Agreement by such individuals.

4. PERMITTED DISCLOSURES

Notwithstanding Section 3, Receiving Party may disclose Confidential Information if and to the extent required by law, regulation, or a valid order of a court or governmental agency of competent jurisdiction (a "Compelled Disclosure"), provided that Receiving Party:

- a. Provides Disclosing Party with prompt written notice of such requirement prior to any disclosure, where legally permissible, to allow Disclosing Party to seek a protective order or other appropriate remedy;
- b. Cooperates with Disclosing Party's efforts to obtain a protective order or other reasonable assurance that the Confidential Information will be accorded confidential treatment; and
- c. Discloses only that portion of the Confidential Information that is legally required to be disclosed.

5. TERM OF CONFIDENTIALITY

The obligations of confidentiality set forth in this Agreement shall commence on the Effective Date and shall survive the termination or expiration of the 12-month AI consulting engagement for a period of ****five (5) years**** from the date of disclosure of each piece of Confidential Information. For any information constituting a "trade secret" under applicable law, the obligations of confidentiality shall continue indefinitely for as long as such information remains a trade secret.

6. RETURN OR DESTRUCTION OF CONFIDENTIAL INFORMATION

Upon the earlier of Disclosing Party's written request or the termination or expiration of the Purpose, Receiving Party shall promptly:

- a. Return to Disclosing Party all originals and copies of any Confidential Information, including all notes, analyses, compilations, studies, or other documents prepared by Receiving Party containing or reflecting such Confidential Information; or
- b. At Disclosing Party's option, destroy all such Confidential Information and provide Disclosing Party with a written certification of such destruction, executed by an authorized officer of Receiving Party, within ten (10) business days of such request.

Notwithstanding the foregoing, Receiving Party may retain one (1) copy of the Confidential Information for archival purposes, subject to the continuing confidentiality obligations hereunder.

7. OWNERSHIP OF CONFIDENTIAL INFORMATION

All Confidential Information disclosed hereunder, and all rights, title, and interest therein, shall remain the sole and exclusive property of Disclosing Party. Nothing in this Agreement shall be construed as granting to Receiving Party any license, right, or interest in or to Disclosing Party's Confidential Information, except for the limited right to use such Confidential Information solely for the Purpose as expressly set forth herein.

8. NO WARRANTY

Disclosing Party makes no representations or warranties, express or implied, as to the accuracy, completeness, or performance of its Confidential Information. Receiving Party agrees that Disclosing Party shall have no liability whatsoever to Receiving Party or any other person resulting from Receiving Party's use of the Confidential Information.

9. REMEDIES

Receiving Party acknowledges that monetary damages alone may not be a sufficient remedy for any breach or threatened breach of this Agreement and that Disclosing Party may suffer irreparable harm as a result of such breach. Therefore, Disclosing Party shall be entitled to seek injunctive relief, specific performance, or other equitable remedies, without the necessity of posting a bond or proving actual damages, in addition to any other remedies available at law or in equity.

10. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the ****State of [Insert State, e.g., Delaware]****, without regard to its conflict of laws principles. The Parties agree that any action or proceeding arising out of or relating to this Agreement shall be brought exclusively in the federal or state courts located in [Insert County/City, e.g., New Castle County, Delaware].

11. NOTICES

Any notice or communication required or permitted to be given under this Agreement shall be in writing and shall be deemed to have been duly given when delivered personally, sent by recognized overnight courier service, or sent by registered or certified mail, return receipt requested, postage prepaid, to the addresses of the Parties first set forth above, or to such other address as either Party may designate by written notice to the other Party.

12. MISCELLANEOUS

- a. ****Entire Agreement:**** This Agreement constitutes the entire agreement between the Parties concerning the subject matter hereof and supersedes all prior and contemporaneous agreements, understandings, negotiations, and discussions, whether oral or written, of the Parties.
- b. ****Severability:**** If any provision of this Agreement is found by a court of competent jurisdiction to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable, and the remainder of this Agreement shall remain in full force and effect.
- c. ****Waiver:**** No waiver of any breach of any provision of this Agreement shall constitute a waiver of any prior, concurrent, or subsequent breach of the same or any other provision hereof. No waiver shall be effective unless made in writing and signed by an authorized representative of the waiving Party.
- d. ****Assignment:**** Neither Party may assign or transfer its rights or obligations under this Agreement without the prior written consent of the other Party. Any attempted assignment or transfer without such consent shall be null and void.
- e. ****No Partnership:**** This Agreement does not create any agency, partnership, joint venture, or employment relationship between the Parties.
- f. ****Headings:**** The headings and titles of the sections of this Agreement are for convenience only and shall not affect the interpretation of this Agreement.
- g. ****Counterparts:**** This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

13. SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

ACME CORP. **** (Disclosing Party)**

By: \\\

Name: [Authorized Signatory Name]

Title: [Authorized Signatory Title]

Date: \\\

JOHN DOE **** (Receiving Party)**

By: \\\

Name: John Doe

Date: \\\

Execution

Each party acknowledges that it has read, understood, and agreed to be bound by this Agreement.

Disclosing Party
Name:

Receiving Party
Name:

Title:
Date:

Title:
Date:

Checked required sections, tone, and formatting consistency.